

the approbation of the Court, and a condition is commonly annexed that the contract shall be null and void, unless the sanction of the Court be obtained within a limited period. Cases have occurred where, from accidental circumstances, the sanction has not been obtained within the time, and then by the death of the purchaser the contract has dropped to *the ground, and the representatives of [*423] the purchaser have not felt themselves justified in renewing it. The better mode would be to give *liberty* to the purchaser at any time after the expiration of the limited

sell, whether they approve or not; *Coleman v. M'Kinney*, 3 J. J. Marsh. 246. In case a sale takes place there is a presumption that all necessary conditions have been performed; *Wilson v. South Park Commissioners*, 70 Ill. 46; *Graham v. Fitts*, 53 Miss. 307; *Penniman v. Sanderson*, 13 Allen, 193; *Hamilton v. Crosby*, 32 Conn. 342. See distinctions between conditions precedent and subsequent; *Mason v. Martin*, 4 Md. 125; *Hill on Trustees*, 178. Trustees should covenant only against their own acts; *Barnard v. Duncan*, 38 Mo. 170. If a trade is thrown up and any of the consideration is forfeited, the trustee must account for it; *Campbell v. Johnston*, 1 Sandf. Ch. 148. A tenant for life may purchase; *Miltenberger v. Morrison*, 46 Mo. 251. The purchaser is not bound to see to the application of the purchase money; *Norman v. Towne*, 130 Mass. 52; *Wagner v. Blanchet*, 27 N. J. Eq. 356; *Conover v. Stothoff*, 38 N. J. Eq. 55; *Keister v. Scott*, 61 Md. 507; *John v. Barnes*, 21 W. Va. 498; but see *Jackson v. Davis*, *MacArthur & Mackey*, 334. Insolvency of the trustee is immaterial; *Tooke v. Newman*, 75 Ill. 215; *McGready v. Harris*, 54 Mo. 137.

The trustee advertised and sold whole land, but the purchaser only getting deed of part, the trustee could make a deed for the balance; *O'Day v. Vansant*, 3 Mackey, 196. Guardian sold less than he held, and then acquiring it for himself improved it, but lost all he had done; *Dickinson v. Durfee*, 139 Mass. 232.

Library association bought more land than it needed, and sold part; *Attorney-General v. Greenfield Library Association*, 135 Mass. 563. Court cannot decree sale of corpus of estate when one is trustee for life only; *Rogers v. Pace*, 75 Ga. 436.

The power given to an executor to sell, did not extend to an administrator with the will annexed; *Banting v. Gummerson*, 24 Q. B. 287; a power to sell does not include a power to mortgage; *Nowlan v. Logie*, 7 Chy. 88; *Henderson v. Woods*, 9 Chy. 539; *Edinburgh Life Ins. Co. v. Allen*, 18 Chy. 425; see also *Ewart v. Dryden*, 13 Chy. 50.

Courts will not set aside sales made by trustees merely because of inadequacy of price; *Linton v. Michie*, 7 Chy. 182; but if the trustee made no effort to get a higher price, and it is clear that he might have sold to better advantage, he may be held responsible for the loss; *Graham v. Yeomans*, 18 Chy. 238. If a trustee has discretion to sell or not, courts will not interfere, but leave him in free exercise of his privilege; *In re Parker*, 20 Chy. 380; *Coy v. Coy*, 25 Chy. 267. Devisees in trust for sale of real estate must jointly receive or unite in receipts for purchase money; *Ewart v. Snyder*, 13 Chy. 55; a power to sell residue of lands, is a general power as to them; *In re Evans*, 4 Chy. Chamb. 102.